ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.: NAME: FIRM NAME: STREET ADDRESS: CITY: STATE: ZIP CODE: TELEPHONE NO.: FAX NO.: EMAIL ADDRESS: ATTORNEY FOR (*name*):	LEVYING OFFICER *(name and address):*
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
PLAINTIFF/PETITIONER: DEFENDANT/RESPONDENT:	COURT CASE NUMBER:
EMPLOYER'S RETURN **(Wage Garnishment)**	LEVYING OFFICER FILE NUMBER:

Instructions to the employer for completing this form:

- You must complete this form and mail it to the levying officer within 15 days. **Failure to complete and return this form may subject you to payment of attorney's fees and other civil penalties.**
- Give your name and address, the name of the person to whom notices should be directed, the name and address of the employee, and information about where to find the employee's Social Security number in the boxes below. If that information has already been provided, please correct any errors.

Name and address of employer

Send notices to *(name):*

Name and address of employee

Social Security No. ☐ on form WG-035 ☐ unknown

1. I received the Earnings Withholding Order on *(date):*
2. The employee is *(check one):*
   a. ☐ not employed by this employer. *(If not employed, skip items 2b through 7 and proceed to the declaration at the end of this form.)*
   b. ☐ now employed by this employer and in the last pay period had gross earnings of: $
3. The employee's pay period is
   a. ☐ daily c. ☐ weekly e. ☐ every two weeks
   b. ☐ twice a month d. ☐ monthly f. ☐ other *(specify):*
4. The employee was given a copy of the Earnings Withholding Order and *Employee Instructions* (form WG-003)
   a. on *(date):*
   b. by *(name and title of person):*
   c. as follows *(describe how the documents were provided to the employee):*

(IF YOU HAVE RECEIVED NO OTHER ORDERS THAT PRESENTLY AFFECT THIS EMPLOYEE'S EARNINGS, SKIP ITEMS 5, 6, & 7 AND PROCEED TO THE DECLARATION AT THE END OF THIS FORM.)

The Federal Wage Garnishment Law and federal rules provide the basic protections on which the California law is based.

SHORT TITLE:	LEVYING OFFICER FILE NUMBER:	COURT CASE NUMBER:

If you have received other orders that presently affect this employee's earnings, another order may have priority over this one. Orders are prioritized as follows:

PRIORITY OF EARNINGS WITHHOLDING ORDERS

First: Wage and Earnings Assignment Order (for Support)
Second: Earnings Withholding Order for Support
Third: Earnings Withholding Order for Taxes
Fourth: Earnings Withholding Order for Elder or Dependent Adult Financial Abuse
Fifth: Earnings Withholding Order

If two or more orders have the same priority, comply with the one received first. If both were received on the same date, comply with the one with the earlier date of judgment. If the dates of judgment are the same, you may select which order you choose to comply with.

5. ☐ This order appears to have higher priority than any other order. Earnings will be withheld for this order in accord with the EMPLOYER'S INSTRUCTIONS (*on page 2 of* Earnings Withholding Order).

6. ☐ The employer has received another order affecting the employee's earnings and earnings are being withheld for the other order because:
   a. ☐ The other order was received first. The other order was received on *(date):*
   b. ☐ This order does not have higher priority.
   c. ☐ A copy of the other order is attached. (*Keep the original for your records. If a copy is not attached, complete item d.)*
   d. ☐ A copy of the other order is NOT attached. *(Describe the other order by providing the following information:)*
      (1) Court name, address, and case number:
      (2) Name of the judgment creditor who secured the order:
      (3) Date the order was issued:
      (4) Date the order expires:
      (5) Levying officer name, address, and file number:
      (6) Total amount to be withheld: $

7. ☐ This order is not effective for the reason shown in item 6. It is being returned to the levying officer with this return.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

Type or Print Name

▶ Signature of Declarant

If an Earnings Withholding Order is not effective when served, for any reason, do not hold it. Return it to the levying officer with this return.

FAILURE TO COMPLETE AND RETURN THIS FORM MAY SUBJECT AN EMPLOYER TO CIVIL PENALTIES AND ATTORNEY'S FEES.

For your protection and privacy, please press the Clear button after you have printed the form.

Print Save Clear